

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

INDEX NO. _____

LISA PEREZ,
Plaintiff,

Plaintiff designates New
York County as the place of
trial.

-against-

S U M M O N S

THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT,

The basis of venue is the
County in which the cause
of action arose.

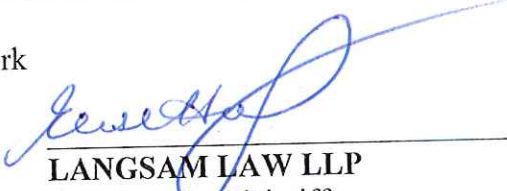
Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
October 23, 2013


LANGSAM LAW LLP
Attorneys for Plaintiff
217 Broadway, Suite 606
New York, New York 10007
(212) 742-2700

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

LISA PEREZ,

Plaintiff,

INDEX NO.

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.

Plaintiff, by his attorneys, LANGSAM LAW LLP, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, LISA PEREZ, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

3. Prior to the commencement of this action, and within ninety days (90) of November 5, 2012, a notice of claim in writing was served on behalf of LISA PEREZ, upon THE CITY OF NEW YORK on January 30, 2013, in accordance with Section 50-e of the General Municipal Law.

4. On January 30, 2013, prior to the commencement of this action, notice of the intention of LISA PEREZ to commence an action, unless the claim presented was adjusted

within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of LISA PEREZ upon THE CITY OF NEW YORK.

5. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

6. A hearing pursuant to General Municipal Law 50-h was held on June 4, 2013.

7. This action is commenced within one (1) year and ninety (90) days from November 5, 2012, the date the incident as herein set forth occurred.

8. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, is a governmental agency/department within the CITY OF NEW YORK.

9. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were responsible for the hiring of police officers.

10. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty to investigate the background and qualifications of prospective employees, and particularly candidates for the position of police officer.

11. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty to ensure that the selected candidates for police officer were qualified and fit for the position.

12. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty to investigate the background and qualifications of the police officers involved in the subject incident.

13. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty to ensure that the police officers involved in the subject incident were qualified and fit to be police officers.

14. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were responsible for the training and the supervision of the conduct and actions of its police officers, including the police officers involved in the subject incident.

15. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty and responsibility to supervise the conduct and actions of its police officers, including the police officers involved in the subject incident.

16. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had the duty and responsibility to enforce the rules and regulations of the defendants, the State of New York and the United States.

17. At all times relevant, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, had the duty and responsibility to ensure that its police officers obeyed the rules and regulations of the defendants, the State of New York and the United States.

18. The acts of the police officers involved in the subject incident hereinafter and heretofore alleged, were done by said police officers under the color and pretense of the statutes, ordinances, regulations, customs, and usages of Defendants CITY OF NEW YORK

and NEW YORK CITY POLICE DEPARTMENT, the State of New York and the United States.

19. On November 5, 2012, LISA PEREZ, who was lawfully in her car on a gas line on First Avenue between E. 126th/E. 127th Street in Manhattan, when claimant was assaulted and falsely arrested by Police Officer Tavares and his partner, both from the 25th Precinct and brought claimant to the 25th Precinct in Manhattan, where she was falsely charged with obstructing governmental function and resisting arrest, resulting in her imprisonment at the precinct and at The Tombs until her release on November 6, 2012.

20. On November 5, 2012, with no reason and/or justification, the defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees were negligent, careless and reckless in their treatment of LISA PEREZ, in assaulting and battering LISA PEREZ, in inflicting physical and psychological injuries upon LISA PEREZ, in negligently restraining and injuring LISA PEREZ, and in falsely arresting and falsely imprisoning LISA PEREZ.

21. As a result, LISA PEREZ was caused to sustain serious and permanent physical and psychological injuries, the extent of which are not presently known but including and not limited to severe anxiety, concern about possible further complications, depression, humiliation, self-consciousness, feelings of helplessness, frustration, feelings of hopelessness, feelings of victimization and vulnerability, flashbacks, fear, anger, desperation, distraction, decreased concentration, exasperation, sadness, melancholy, feelings of invalidism, social inhibition and psychic trauma, bruises and contusions.

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation contained in the aforementioned paragraphs of the Complaint as if fully set forth at length herein.

23. At the aforesaid time and place, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT's police officers, assaulted LISA PEREZ.

24. At the aforesaid time and place, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT'S police officers, assaulted LISA PEREZ without justification.

25. At the aforesaid time and place, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT'S police officers, assaulted LISA PEREZ without reasonable cause for them to believe that they were in danger.

26. At the aforesaid time and place, decedent, LISA PEREZ was the victim of negligence on the part of the defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their agents, servants, officers, and/or employees which consisted of, among other things: improperly, carelessly and recklessly assaulting LISA PEREZ, carelessly and negligently making physical contact with LISA PEREZ, and their and/or its exercise of their and/or its authority and power, and/or in hiring, and/or in training, and/or retaining defendants' police officers, and in failing to discharge defendants' police officers, and in violating LISA PEREZ's civil rights.

27. At the aforementioned time and place, said defendants, their agents, servants, officers, and/or employees negligently, carelessly, and recklessly performed their police

duties in that they failed to use such care as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly, and without provocation, negligently used excessive force so as to cause LISA PEREZ to sustain severe and permanent injuries.

28. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

29. By reason of the foregoing, plaintiff, LISA PEREZ, demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action, together with punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION

30. Plaintiff repeats and realleges each and every allegation contained in the aforementioned paragraphs of the Complaint as if fully set forth at length herein.

31. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT's acts were intended to make contact with plaintiff.

32. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT made contact with Plaintiff..

33. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT battered plaintiff.

34. As a result of defendants' battery upon plaintiff, plaintiff was seriously and permanently injured.

35. This action falls within one or more of the exceptions set forth in Section 1602 of

the Civil Practice Law and Rules.

36. Due to defendants' battery of the plaintiff, plaintiff LISA PEREZ is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

37. Plaintiff repeats and realleges each and every allegation contained in the aforementioned paragraphs of the Complaint as if fully set forth at length herein.

38. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT arrested plaintiff without justification.

39. As a result of defendants' false arrest of plaintiff, plaintiff was seriously and permanently injured.

40. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

41. Due to defendants' false arrest of the plaintiff, plaintiff LISA PEREZ is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

42. Plaintiff repeats and realleges each and every allegation contained in the aforementioned paragraphs of the Complaint as if fully set forth at length herein.

43. The defendants intentionally confined LISA PEREZ and/or restricted LISA PEREZ's freedom of movement.

44. LISA PEREZ was conscious of said confinement and/or restriction.
45. LISA PEREZ did not consent to said confinement and/or restriction.
46. The confinement and/or restriction was not otherwise privileged.
47. Due to defendants' false arrest and imprisonment of LISA PEREZ, plaintiff LISA PEREZ is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

48. Plaintiff repeats and realleges each and every allegation contained in the aforementioned paragraphs of the Complaint as if fully set forth at length herein.

49. At all times herein mentioned, the Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, negligently, carelessly and recklessly came into harmful contact with the person of LISA PEREZ.

50. As a result of defendants' negligence, plaintiff was seriously and permanently injured.

51. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

52. Due to defendants' negligence, plaintiff LISA PEREZ is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

53. Plaintiff repeats and realleges each and every allegation contained in the

aforementioned paragraphs of the Complaint as if fully set forth at length herein.

54. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, had prior notice of the propensities of defendants' police officers to use excessive force.

55. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had prior notice of the propensity of its police officers to abuse their authority, to use excessive force, and/or to exhibit violent behavior.

56. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, despite having knowledge of the propensities of defendants' police officers, took no steps to train defendants' employees, or to correct their abuse of authority or to discourage their unlawful use of authority, or to stop their use of excessive force, and/or to curb their violent behavior.

57. The failure of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, to properly train defendants' police officers, included, *inter alia*, the failure to instruct them in the applicable provisions of the City and State enforcement laws, the laws of the United States, and the applicable provisions of the rules and regulations of the NEW YORK CITY POLICE DEPARTMENT, with respect to the proper and prudent use of force.

58. Said defendants authorized and tolerated as institutionalized practices, and ratified the misconduct hereinbefore detailed by, *inter alia*:

a) Failing to properly discipline, restrict, and control employees, including the police officers known to be irresponsible in their dealings with civilians;

b) Failing to take adequate precautions in the hiring, promotion, and retention of police officers, including specifically, the police officers responsible for shooting the decedent;

c) Failing to establish and/or assure the functioning of a bona fide and meaningful departmental system for dealing with police officer misconduct.

59. As a consequence of the abuse of authority, detailed above, the plaintiff sustained the damages hereinbefore alleged, and plaintiff hereby makes claim for punitive damages for the acts complained of.

60. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

61. By reason of the foregoing, plaintiff LISA PEREZ demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action, together with punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

62. Plaintiff LISA PEREZ repeats, reiterates and realleges each and every allegation contained in this Complaint as if fully set forth here in at length.

63. On and prior to the 5th day of November, 2012, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT employed police officers assigned, *inter alia*, to the 25th Precinct.

64. Defendants' police officers, involved in the incident heretofore mentioned, were unqualified, unfit and incompetent to perform the duties and responsibilities required in their capacity as police officers with the NEW YORK CITY POLICE DEPARTMENT.

65. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT knew or should have known in the exercise of reasonable care that these police officers were unqualified, unfit and incompetent to properly and safely perform the duties and responsibilities of a police officer.

66. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT knew or should have known in the exercise of reasonable care that a person in plaintiff's position would be subjected to an unreasonable risk of harm from defendants' police officers.

67. At all of the relevant times, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT breached the duty they owed to the decedent to use reasonable care in hiring their employees by failing to conduct a reasonable investigation into the background, education, training and character of its police officers, before they are hired, and before the events of the 5th day of November, 2012.

68. Had THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT performed a reasonable investigation into the background, education, training and character of the police officers, they would have discovered that they were unfit, unqualified and incompetent to perform the duties, and to carry out the responsibilities of a NEW YORK CITY police officer.

69. As a result of the foregoing, LISA PEREZ was severely and permanently injured.

70. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

71. By reason of the foregoing, plaintiff LISA PEREZ demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action, together with punitive damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION

72. Plaintiff repeats, reiterates, and realleges each and every allegation of this Complaint as if more fully set forth herein at length.

73. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their agents, servants, officers and employees negligently, carelessly and recklessly failed to properly train and/or supervise their employees, and particularly, the police officers involved in this incident, and particularly, in proper police policies and procedures, laws, rules and regulations applicable to situations as the one which occurred on the 5th day of November, 2012, as hereinbefore set forth, and in the appropriate police procedures, rules regulations and laws pertaining to the use of force.

74. As a result of the foregoing, LISA PEREZ suffered severe and permanent personal injuries that caused him great physical pain and mental anguish.

75. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

76. By reason of the foregoing, plaintiff, LISA PEREZ demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action.

AS AND FOR A NINTH CAUSE OF ACTION

77. Plaintiff repeats, reiterates, and realleges each and every allegation of this Complaint as if more fully set forth herein at length.

78. The aforementioned assault and battery committed by the defendants, their agents, servants, officers, and/or employees, was the consequence of their use of excessive force in violation of LISA PEREZ's federal and state constitutional and civil rights.

79. The defendants, their agents, servants, officers, deputies, and/or employees acted with deliberate indifference to the plaintiff's civil and constitutional rights.

80. The defendants, their agents, servants, officers, and/or employees acted under color of the authority of law as police officers and officials of the NEW YORK CITY POLICE DEPARTMENT.

81. The force used by the defendants, their agents, servants, officers, and/or employees was unreasonable in light of the circumstances of the assault and battery and thereby violated the rights of LISA PEREZ, guaranteed by the Fifth, Eighth, and Fourteenth Amendments to the Constitution of The United States of America.

82. The force used by the defendants, their agents, servants, officers, and/or employees was unreasonable in light of the circumstances of the assault and battery and

thereby violated the rights of LISA PEREZ guaranteed by New York Civil Rights Law § 40-c.

83. The assault and battery on LISA PEREZ was unconstitutional as the defendants, their agents, servants, officers, and/or employees did not have to injure him, as he was not a threat to them or to the public order, and their acts were done in bad faith, maliciously and sadistically to cause harm.

84. The conduct of the defendants, their agents, servants, officers, and/or employees was excessive, unnecessary, unwarranted, unjustified, without cause, willful, wanton, malicious, intentional and with clear intent to deprive LISA PEREZ, of his rights, privileges and immunities secured to him under the Constitution of the United States of America, which provides for the equal rights of citizens of the United States, and which rights, privileges and immunities are guaranteed by the Due Process Clauses of the Constitution of the United States of America and Title 42, United States Code, Section 1983, justifying the imposition of punitive damages.

85. The defendants, their agents, servants, officers, and/or employees severely assaulted and battered LISA PEREZ, resulting in severe and permanent injuries and deprived him of his rights and liberties as set forth in the Constitution of the United States of America, and of the State of New York, in that they assaulted and battered LISA PEREZ without any conduct on the part of the plaintiff to so warrant, to wit:

(a) In that all of the actions of the defendants, their agents, servants, officers, and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff;

(b) In that the defendants, their agents, servants, officers, and/or employees caused an assault and battery when they, in a hostile and/or offensive manner threatened and caused serious injury to the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatsoever;

(c) In that the defendants, their agents, servants, officers, and/or employees failed to adequately, sufficiently and/or properly hire, retain, train, retrain, supervise, discipline, or in any other way control the behavior and performance of its agents, servants, officers, and/or employees, and particularly the police officers involved in this incident, and in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State of New York and the United States of America is evidence of the reckless lack of caution with regard for the rights of citizens of the State of New York, and the United States of America including LISA PEREZ and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

(d) In the failure of the defendants, their agents, servants, officers, and/or employees to hire, train, supervise, discipline or in any other way control the defendants, and particularly, the police officers involved in this incident, in the exercise of their functions and

their failure to enforce the laws of the State of New York, which was carried out willfully, wantonly, maliciously and with such reckless disregard for the citizens of the State of New York, including LISA PEREZ;

(e) Due to the acts of the defendants, their agents, servants, officers, and/or employees, including the failure to discipline, train and properly hire, and particularly the hiring of defendants' police officers involved in this incident, and the continued employment of the defendants, their agents, servants, officers, and/or employees, and particularly the police officers involved in this incident, these defendants presents a clear and present danger to the citizens of the State of New York.

(f) In that the defendants, their agents, servants, officers, and/or employees permitted the use of a policy and/or drafted a policy that was violative of the constitutional rights of LISA PEREZ; and in that each and all of the acts of the defendants, their agents, servants, officers, and/or employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, and under the authority of their office as police officers and officials of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

86. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, and the police officers involved in this incident, who are agents, servants and/or employees of defendants, acting under color of law, subjected LISA PEREZ and other persons, to a pattern of conduct consisting of assault, battery and intentional infliction of

emotional distress, in denial of rights, privileges and immunities guaranteed LISA PEREZ and other citizens by the Constitution of the United States of America and the State of New York.

87. Although defendants, their agents, servants, officers, and/or employees knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants, officers, and/or employees, the defendants have not taken any steps or made any effort to halt this course of conduct, to make redress to the plaintiff, or other citizens injured thereby, or to take the proper disciplinary action against any of their employees, agents, servants, officers and particularly against the police officers involved in this incident.

88. The unlawful and illegal conduct of the defendants, their agents, servants, officers, and/or employees and each of them, deprived LISA PEREZ of the rights, privileges and immunities secured to him by the Constitution of the United States of America, and of the State of New York, more specifically, the liberty in being free from bodily injury.

89. The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees is of the type that shocks the conscience and entitles plaintiff LISA PEREZ to an award of punitive damages.

90. As a direct and proximate cause of the aforementioned actions, plaintiff LISA PEREZ suffered severe and permanent injuries.

91. Pursuant to 42 U.S.C. § 1983, plaintiff LISA PEREZ seeks an award of attorneys' fees and costs incurred in bringing this action.

92. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

93. By reason of the foregoing, plaintiff, LISA PEREZ, demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action, together with punitive damages.

AS AND FOR AN TENTH CAUSE OF ACTION

94. Plaintiff repeats, reiterates and realleges each and every allegation of this Complaint as if fully set forth here at length.

95. On the 5th day of November, 2012, plaintiff LISA PEREZ was the victim of the tortuous conduct inflicted by defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT's police officers, whose tortuous conduct consisted of assault, battery, excessive use of force and unjustified use of force, negligence, violation of plaintiff's Civil Rights, and carelessly and improperly exercising their authority and power,

91. At the aforesaid time and place and at all times relevant, police officers committed the aforementioned tortuous acts that injured LISA PEREZ, as agents, servants, officers, and/or employees of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

96. As a result of the aforementioned conduct and actions of the defendants, plaintiff LISA PEREZ sustained severe and permanent injuries.

97. At the aforementioned time and place, the police officers, were acting within the scope of their employment and duties of their employer, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

98. The aforementioned tortuous conduct committed by defendants was so egregious and oppressive and characterized by malice or wantonness that the imposition of punitive damages is justified.

99. Upon the foregoing, plaintiff LISA PEREZ, demands judgment against the defendants for his personal injuries, together with punitive damages for the egregious tortuous conduct of the defendants, and further, punitive damages because defendants, their agents, servants, officers and/or employees were reckless and/or wanton in hiring and/or retaining the police officers, who committed the torts after knowledge of their proclivities to engage in such conduct.

100. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

101. By reason of the foregoing, plaintiff LISA PEREZ, demands judgment against the defendants in an amount in excess of the jurisdictional limitations of all Courts that would otherwise have jurisdiction of the action, together with punitive damages.

WHEREFORE, the plaintiff demands:

a. judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

b. judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

c. judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

d. judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

e. judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

f. judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

g. judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

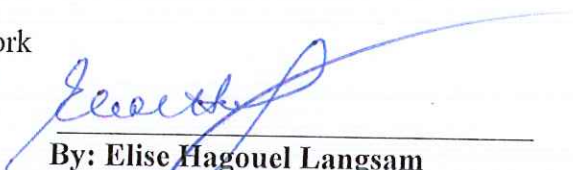
h. judgment awarding damages on the eighth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

i. judgment awarding damages on the ninth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

j. judgment awarding damages on the tenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

k. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
October 23, 2013



By: Elise Hagouel Langsam
LANGSAM LAW LLP
Attorneys for Plaintiff
217 Broadway, Suite 606
New York, New York 10007
(212) 742-2700

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

LISA PEREZ

Plaintiff,

-against-
THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT,
Defendant.

INDEX NO.

**INDIVIDUAL
VERIFICATION**

STATE OF NEW YORK)
) ss.:
COUNTY OF NY)

, being duly sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.

x Lisa M. Perez

Sworn to before me this 24th
_____ day of October 2013

Lina M. Ramirez
NOTARY PUBLIC

Lina M. Ramirez
Notary Public State of New York
No. 01RA6259244
Qualified in Queens County
Term Expires April 9, 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

LISA PEREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT,
Defendants.

SUMMONS and VERIFIED COMPLAINT

LANGSAM LAW LLP
Attorneys for Plaintiff
217 Broadway, Suite 606
New York, New York 10007
(212) 742-2700